

Introduction to Islamic Law

Meaning:

- ▶ Shariah literally means a clear path or way to be followed. Technically, Sharia or Islamic law is the set of rules by which Muslims are governed and organized. It is divided into *Ibadat* and *Muamalat* and forms the basis of Muslims' relationship with God, other human beings as well as things. These also include adjudicatory rules for resolving conflicts between individuals as well as individuals and the state.

The Moral Basis of Shariah:

The basis of Sharia is to enjoin good امر بالمعروف and prohibit wrong نهي عن المنكر. This has been clearly stated in Quran 7:157 as follows:

- ▶ *“Indeed you are the best community raised among mankind. You enjoin righteousness and forbid wrongfulness.*

The Foundational Principle of Shariah:

- ▶ *“legal sovereignty over the entire universe belongs to Allah alone. This authority, however, is exercisable by people within the limits prescribed by Him, as a sacred trust.”*

Maqasid al-Shariah (Objectives of Islamic Law):

The purpose of shariah is to set on the path of righteous living based on submission to the Laws ordained by God.

Following purposes are generally, prioritized:

- ▶ - Preservation of Din itself,
- ▶ - Preservation and protection of life,
- ▶ - Maintenance of family unit and family values,
- ▶ - Development of personality and intellect,
- ▶ - Economic well-being

Sources of Shariah

- ▶ The sources of the Shariah are divided into primary sources: the Quran and Sunnah and secondary sources: consensus and analogy.
- ▶ There are a number of verses in the Quran which identify the sources of Shari'ah and the order of priority between them. But one passage in which all the principal sources are indicated is as follows:
- ▶ *"O you believers, Obey God and obey the Messenger and those of you who are in charge of affairs. If you have a dispute concerning any matter, refer it to God and to the Messenger."* (4:58-59)
- ▶ 'Obey God' in this verse refers to the Quran, and 'Obey the Messenger' refers to the Sunnah. Obedience to 'those who are in charge of affairs' is held to be a reference to Ijma', and the last portion of the verse which requires the referral of disputes to God and to the Messenger authorizes Qiyas.

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- ▶ The proofs of Shariah have been further divided into;
- ▶ Transmitted proofs (*Adil'lah Naqliyyah* **أدلة نقلية**) Quran & Sunnah
- ▶ Rational proofs (*Adil'lah Aqliyyah* **أدلة عقلية**). Ijma & Qiyas etc.
- ▶ The authority of the transmitted proofs is independent of any rational justification that might exist in their favour.
- ▶ The rational proofs are, on the other hand, founded in reason and need to be rationally justified.

Primary Sources of Shariah

1. Quran

Quran' literally means 'reading' or 'recitation'. It may be defined as "the book containing the speech of God revealed to the Prophet Muhammad in Arabic and transmitted to us by continuous testimony, or Tawatur." Qur'an is the most authoritative guide for Muslims, and the first source of the Shariah. The revelation of the Quran began with the Surah al-'Alaq (96:1) starting with the words 'Read in the name of your Lord' and ending with the Ayah in Surah al-Ma'idah (5:3): 'Today I have perfected your religion for you and completed my favour toward you, and chosen Islam as your religion.' There are 114 Surahs (chapters) of unequal length in the Quran. The shortest of the Surahs consist of three and the longest of 286 verses. Each chapter has a separate title. The longest Surahs appear first and the Surahs become shorter as the text proceeds. Accordingly, the Quran begins with Surah al-Fatihah and ends with Surah al-Nas.

- ▶ The Quran was revealed over the period of 23 years in two distinct periods of the Prophet's mission in Mecca and Madinah respectively. A Surah is considered to be Makki, if its revelation had begun in Mecca, even if it contained some verses that were later revealed in Madinah. The Quran consists of eighty-five Meccan and twenty-nine Madinan Suras. Meccan part of the Quran is mainly devoted to matters of belief, the Oneness of God (Tawhid), the Prophethood of Muhammad, the hereafter, disputation with the unbelievers and their invitation to Islam. But the Madinan part of the Quran comprised of legal rules regulating life in the nascent Islamic community. The Quranic emphasis was shifted to principles regulating the political, legal, social and economic life of the new community. The Meccan Suras are generally short, whereas the Madinan Suras are detailed.
- ▶ More than a legal instrument, the Quran calls itself Huda, or guidance. Out of over 6,200 Ayah, less than one-tenth relate to law and Jurisprudence, while the remainders are largely concerned with matters of belief and morality, the five pillars of the faith and a variety of other themes. The legal or practical contents of the Quran (Al-ahkam al-'amaliyyah الاحكام العملية) constitute the basis of what is known as Fiqh al-Quran, or the Corpus Juris of the Quran. There are close to 350 legal verses in the Quran, most of which were revealed in response to problems that were encountered. Some were revealed with the aim of repealing objectionable customs such as infanticide, interest, gambling and unlimited polygamy. Others laid down penalties with which to enforce the reforms that the Quran had introduced. But on the whole, the Quran confirmed and upheld the existing customs and institutions of Arab society and only introduced changes where necessary.

► *i. The Definitive (Qat'i) and the Speculative (Zanni)*

A definitive text is one which is clear and specific; it has only one meaning and admits of no other interpretations. An example of this is the text on the entitlement of the husband in the estate of his deceased wife, as follows: *'In what your wives leave, your share is a half, if they leave no child'* Quran 4:12.

The speculative Ayah of the Quran are, on the other hand, open to interpretation and Ijtihad. The best interpretation is that which can be obtained from the Quran itself, that is, by looking at the Quran as a whole and finding the necessary elaboration elsewhere in a similar or even a different context.

ii. Brevity and Detail (Al-Ijmal wa'l-Tafsil)

The Quranic legislation consists of a clarification of general principles, although in certain areas, the Quran also provides specific details. Being the principal source of the Shariah, the Quran lays down general guidelines on almost every major topic of Islamic law. Most of the legal contents of the Quran consist of general rules, although it contains specific injunctions on a number of topics. Broadly speaking, the Quran is specific on matters which are deemed to be unchangeable, but in matters which are liable to change, it merely lays down general guidelines.

iii Occasions of Revelation (Asbab al-Nuzul) اسباب النزول

Asbab al-nuzul deal with the circumstances of the Quran, and explain the events which led to the revelation of its particular passages. The well-known asbab al-nuzul have been related by reliable Companions. The knowledge of asbab al-nuzul is necessary for anyone who wishes to acquire more than a superficial knowledge of the Quran. The knowledge of asbab al-nuzul is informative to the conditions of the Arab society at the time. The Asbab al-Nuzul take full cognizance of the customary practices of Arabian society and the relationship, if any, of such practices to Quranic legislation.

► 2. Sunnah

- Literally, Sunnah means a clear path, but it has also been used to imply normative practice, an established conduct or custom. The opposite of Sunnah is bid'ah, or innovation, which is characterized by lack of precedent and continuity with the past. To the Ulama of Hadith, Sunnah refers to all that is narrated from the Prophet, his acts, his sayings and whatever he has tacitly approved. Sunnah is also understood as a practice that the Prophet recommended to be followed as a religious obligation and the matter is religious in nature.
- In a Hadith, the Prophet is reported to have said, “I left two things among you. You shall not go astray so long as you hold on to them: the Book of Allah and my Sunnah.” Also, Ahl al Bait is mentioned in certain Prophetic traditions.
- The Ulama are unanimous to the binding effect of Sunnah as a source of Shariah. In more than one place, the Quran enjoins obedience to the Prophet and makes it a duty on the believers to submit to his judgment and his authority without question.

► *Ijmāʿ* (Consensus)

Ijmāʿ ‘is the unanimous agreement of the Ummah [nation] on a regulation (*ḥukm*) imposed by God. Technically, it is the unanimous doctrine and opinion of the recognized religious authorities at any given time.’

Consensus had been in existence as an imperative in social consciousness before the advent of Islam, but it started to play a significant role in sanctioning the doctrines of geographical schools of thought, where each of the schools perceived consensus of its polity as an authoritative source.

Like other sources of Islamic law, the definition of consensus proves to be rather complex. For example, **Ibn Hazm** argues that only consensus of the companions of the Prophet is recognizable as a legal source and that consensus reached after that era may not be considered authoritative. On the other hand, **Mālikīs** (followers of one of the four main schools of Sunni thought) argue that the legitimate consensus ‘is limited to the common practice of Medina,’ whereas the **Ḥanafīs** (followers of another main school) believe in **universality of consensus.**

► **Qiyas (Analogy)**

Qiyās managed to take prominence as the primary manner of exercising *ijtihād*. After the death of the Prophet (sws), it was understood that the era of revelation ceased and that Muslims no longer have access to the figure of the Prophet (sws) to resort to when facing complex unprecedented issues. While the Qur'an contained a limited number of rulings, it indicated possible venues for deductive and inductive logic applicable to a wide range of matters uncovered by specific rulings. There are arguments that *qiyās* was applied shortly after the death of the prophet. However, technicalities of *qiyas* as one of the sources of law were later elaborated on by jurists. Proper *qiyās* is condition on the below steps.

1. **New Case:** The jurist must establish that the case dealt with is a unique case for which a ruling can not be simply reached from the texts.
2. **'Asl:** A basic case governed by the text must be found as a basis for analogy.
3. **'Ila (Raison d'être):** The jurist is expected to exert effort to properly understand the logic or the *raison d'être* of the basic case and establish that this particular *'ila* applies to the new case.

► *Ijtihād*

Ijtihad is literally translated as exerting oneself, but in Islamic law, it is generally understood as ‘the exertion of mental energy in the search of a legal opinion to the extent that the faculties of the jurist become incapable of further effort.

The rules of *fard ‘ayn* فرض عين and *fard kifāya* فرض كفايه apply to *ijtihad*. It is considered *fard ‘ayn* when the jurist personally encounters an incident and fears that God’s will may not be upheld, but it is considered a *fard kifāya* when there is no such fear and other jurists are addressing the matter.

Ijtihād is usually exercised when the Qur’an and Sunnah do not specify a specific ruling (*ḥukm*) with regards to a particular legal question. It is then the duty of the jurist to use mental faculties to address that legal question.

Schools of Islamic Jurisprudence

- ▶ Schools of legal thought are referred to in Sunni legal thought as *madhāhib* (sing. *madhhab*). *Madhhab* ‘means that which is followed and, more specifically, the opinion or idea that one chooses to adopt.’
- ▶ Prominent Schools of Islamic Jurisprudence:
 - ▶ Hanafi School
 - ▶ Maliki School
 - ▶ Shafi School
 - ▶ Hanbali School
 - ▶ Jafari School

► The *Ḥanafī* School

The *Ḥanafī* School is named after Abū Ḥanīfa (d.150AH/767). The school was an evolutionary extension of the ancient school of Kūfa and was centred around the figures of Abū Ḥanīfa and his two disciples, Abū Yūsuf and Imam Muhammad al-Shaybānī. The school is famed for pioneering the camp of *ahl al-ra'y* (people of opinion). Because of its origination in Iraq, the school was favoured by the Abbasid caliphate and benefited from that position which allowed it spread into Khurasan, the Indian sub-continent and other areas. The school enjoys more diversity than other Sunnī school and finding a unified position of the school is rather difficult, but the founders of the school are famed for extensive use of *qiyās*, *istiḥsān* and incorporation of *'urf*.

► The *Mālikī* School

The *Mālikī* School is named after the renowned Medinan jurist Imam Mālik (d.179AH/795AD). Mālik is often referred to as the author of the earliest surviving treatise on Islamic law, al-Muwaṭṭa'. The book is a compilation of *ḥadīth* in the areas of *'ibadāt* and *mu'amalāt* and is argued to represent the consensus of the people of Medina. 'The tradition of the Prophet Muḥammad (sws) and that of the Companions (rta) constitute the *Sunnah* according to Mālik. Mālik is also known to have employed *istiḥāb* and *maṣlaḥa* (pl. *maṣaliḥ*) as earlier mentioned. In addition to Medina, the Mālikī School was particularly popular in North Africa and Andalusia.

► The Shāfi'ī School

Al-Shāfi'ī (d.204AH/820AD) was a student of both Malīk and al-Shaybānī. Many Western and Muslim scholars credit al-Shāfi'ī with the task of singlehandedly developing the doctrine of *usūl al-fiqh*, the creation of a more coherent approach to legal reasoning as a discipline and ending the battle between *ahl al-ra'y* and ahl-ḥadīth through compromise and some victory for *ahl al-ḥadīth*. Al-Shāfi'ī's thought focuses on the supremacy of the Qur'an and *sunnah* and on the importance of textual foundation for legal reasoning. Al-Shāfi'ī himself emphasized *qiyās* relying on textual sources and strongly denounced *istiḥsān*.

► The Ḥanbalī School

Ahmed ibn Ḥanbal is perceived as the fourth and the last of the four imams establishing mainstream schools of legal thought in Sunnī Islam. As with the other three schools, detailed research of the development of this school's theoretical framework shows how it developed over time and how later scholars were equally significant in shaping it. Ḥanbalī thought is perceived to be one of the most traditionist (laying strong emphasis on superiority of sacred traditions) Sunni schools of legal thought. It asserts superiority of Qur'an and Sunnah followed by the opinions of the companions and employs *istiḥāb* extensively.

► **The Ja'farī school:**

- Also known as the **Jafarite school**, **Ja'farī fiqh** or **Ja'fari jurisprudence**, is a prominent school of jurisprudence (*fiqh*) within Twelver and Ismaili Shia Islam, named after the sixth Imam, Ja'far al-Sadiq. In Iran, Ja'fari jurisprudence is enshrined in the constitution, shaping various aspects of governance, legislation, and judiciary in the country.
- It differs from the predominant madhhabs of Sunni jurisprudence in its reliance on ijtihad, as well as on matters of inheritance, religious taxes, commerce, personal status, and the allowing of temporary marriage etc.
- The Ja'fari school was imposed as the state jurisprudence in Iran during the Safavid conversion of Iran to Shia Islam from the 16th to the 18th century. Followers of the Ja'fari school are predominantly found in Iran, Iraq, Azerbaijan and Bahrain where they form a majority, with large minorities in eastern Saudi Arabia, southern Lebanon and Afghanistan.